

		56. The proposed order should also address the PAGA settlement, including identifying the aggrieved employees and the PAGA period. 57. The proposed order should include a provision stating that the court retains jurisdiction to enforce the settlement pursuant to Civil Procedure Code section 664.6. 58. The parties should propose a date for the final approval hearing. The court holds final approval hearings on Thursdays at 2:00 p.m. The motion for final approval should be filed and served at least 16 court days before the final approval hearing. The hearing on plaintiff's' motion for preliminary approval is continued to <u>November 5, 2026 at 2:00 p.m.</u> in Department CX105 to enable the parties to address and respond to the above issues. <i>See also</i> Department CX105 Guidelines for Approval of Class Action Settlements and PAGA Settlements (www.occourts.org). A supplemental brief shall be filed at least 9 court days before the hearing and shall address as necessary each of the above points. <u>If required, an amendment to the settlement agreement shall be submitted, rather than an "amended settlement agreement," to streamline the court's review.</u> The parties shall provide redlined copies of any revised documents (e.g., revised settlement agreement, revised notice, revised proposed order). Plaintiff is ordered to give notice, including to the LWDA, and to file a proof of service. Plaintiff must also serve the LWDA with any supplemental brief and any amended documents, and file a proof of service. No earlier hearing date is available for this motion.
7	Steidl v. Z3 Plumbing Corp. 2023-01365173	<u>Plaintiff's Motion for Approval of PAGA Settlement</u> "Because an aggrieved employee's action under the Labor Code Private Attorneys General Act of 2004 functions as a substitute for an action brought by the government itself, a judgment in that action binds all those, including nonparty aggrieved employees, who would be bound by a judgment in an action brought by the government." <i>Arias v. Superior Court</i> (2009) 46 Cal.4th 969, 986. PAGA settlements are subject to trial court review "to determine whether [they are] fair, reasonable, and adequate in view of PAGA's purposes to remediate present labor law violations, deter future ones, and to maximize enforcement of state labor laws." <i>Moniz v. Adecco USA, Inc.</i> (2021) 72 Cal.App.5th 56, 77. The court has reviewed and considered the papers filed in support of plaintiff's motion for approval of a \$75,000 PAGA settlement. The court has the following questions and comments: <u>As to the settlement:</u> 1. Why is the defendant funding the settlement funds in three installments? Settlement Agreement ¶¶ 1.10, 3.1. If defendant is paying the settlement in installments due to

		defendant's financial condition, admissible evidence of defendant's financial condition must be provided, including appropriate financial documents such as balance sheets, cash flow statements, and profit and loss statements. 2. The parties and counsel must submit declarations stating whether they have any interest in the cy pres recipient (Justice Gap Fund), including in its governance. (This statement should not appear in the proposed order and judgment.) The parties should also explain why a cy pres distribution is appropriate here, as opposed to, e.g., distributing any unclaimed funds to the State Controller's Office in the aggrieved employee's name. 3. Is the estimated average individual PAGA payment \$60.71? In addition, the parties should provide the estimated high and low individual PAGA payments. 4. Plaintiff should provide his anticipated total amount to be received (including for any individual claims and excluding any enhancement payment). 5. The "Released Parties" provision in paragraph 1.26 of the settlement agreement is overbroad. It includes ambiguous, unidentified and/or unrelated third parties such as "attorneys, insurers" and "affiliates." 6. Paragraph 3.2.3 of the settlement agreement is incomplete. In addition, the settlement administrator's invoices states its charges will not exceed \$2,750. Woods Decl. (ROA 31) Ex. 5. The settlement agreement should be revised accordingly. 7. The phrase, "Aggrieved Employees" should be inserted in paragraph 5 between "Plaintiff" and "PAGA Counsel." 8. The phrase "without limitation cause of action against Z3" in paragraph 5.2 does not make sense. 9. The parties (plaintiff and defendant) should advise, in declarations filed with the court, whether, after making reasonable inquiry, they are aware of any class, representative or other collective action in any court that asserts claims similar to those asserted in this action. If any such actions are known to exist, the declarations shall also state the name and case number of any such case and the procedural status of that case, and describe the impact of the settlement on that case. 10. Plaintiff's counsel seeks attorneys' fees totaling one-third of the gross settlement amount. Absent unique circumstances, the court is unlikely to approve an attorneys' fees award that exceeds 30% of the gross settlement amount. Plaintiff's counsel should address in the supplemental filings whether any such unique circumstances exist here.
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8	People of State of California v. Jivalagian, et al. 2026-01543442	<u>Defendants Caspar S. Jivalagian and Vache A. Thomassian's Motion to Seal</u> Defendants Caspar S. Jivalagian and Vache A. Thomassian move to seal (i) the complaint filed in this case on January 29, 2026, (ii) "all papers and records related to Plaintiff's ex parte Application for an Order Staying the Proceedings," (iii) "all papers and records related to Plaintiff's Motion for an Order Staying the Proceedings," (iv) "all papers and records related to this Motion" and (v) "all papers and records relating to Defendants' ex parte Application to advance the hearing of this motion." Notice of Motion (ROA 49) at 2:4-8. While defendants do not identify these documents by name or ROA number, review of court file reflects that defendants apparently